

25STCV01244 25STCV01244

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-07-21

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Case Number: 25STCV01244 Hearing Date: July 21, 2026 Dept: 731

JESUS MANUEL NAVIDAD CARRILLO, an individual, Plaintiff, vs. ICONIC INVESTMENTS, INC., a California Corporation; and DOES 1 through 20, inclusive, Defendants.

CASE NO: 25STCV01244 [TENTATIVE] ORDER RE: MOTION TO BE RELIEVED AS COUNSEL—CIVIL Dept. 731 8:30 a.m. July 21, 2026

Moving Party: Walter Mosley, Mosley & Associates

Opposing Party: None

Notice: OK

Walter Mosley of Mosley & Associates moves for an order relieving him of representation for Plaintiff Jesus Manual Navidad Carrillo, contending there has been a breakdown of the attorney-client relationship—namely Plaintiff's failure to return counsel's communications via the designated proxy, Plaintiff's spouse—thus rendering it extremely difficult for counsel to continue in representation of Plaintiff. (May 26, 2026, Form MC-052, § 2, attach. 2, ¶¶ 4-4.e.)

After review, the Court finds that relief is merited here:

- The record shows that on May 26, 2026, counsel filed proof of service showing service of the moving papers on Plaintiff and all parties who have appeared in the action, satisfying the California Rules of Court requirements for motions to be relieved as counsel in civil cases. (Cal. Rules of Court, rule 3.1362.)
- Counsel's motion is unopposed, favoring relief. (Sexton v. Superior Court (1997) 58 Cal.App.4th 1403, 1410.)
- Trial is set for July 2027, thus giving Plaintiff sufficient time to find substitute counsel, and undercutting any prejudice to Plaintiff in that regard. (Ramirez v. Sturdevant (1994) 21 Cal.App.4th 904, 915 [court should consider whether the attorney's "withdrawal can be accomplished without undue prejudice to the client's interests"].)

Briefly, and specifically in light of the Court's May 26, 2026, denial of a substantively identical relief, the Court notes that it is satisfied with counsel's confirmation of the service address. Counsel has encountered significant setbacks in communicating with Plaintiff, which impeded his ability to provide confirmation of mailing address within 30 days of the motion. (May 26, 2026, Form MC-052, § 2, attach. 2, ¶¶ 4-4.e.) Moreover, counsel has since confirmed that the service address in the moving papers is the address at which Plaintiff continues to reside. (Jul. 6, 2026, Supplemental Declaration, ¶ 8.)

Accordingly, Mr. Walter Mosley's motion is GRANTED. Relief is effective upon filing proof of service of the final order on Plaintiff.

Mr. Walter Mosley of Mosley & Associates is ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.

DATED: July 21, 2026 _____

MARK C. KIM

Judge of the Superior Court